RECALLING Article 28(b) of the Convention on the International Maritime Organization con cerning the functions of the Committee, NOTING Conference Resolution 2, by which the 200 2 SOLAS Conference adopted the International Code for the Security of Ships and of Port Facilities (International Ship and Port Facility Security (ISPS) Code) (hereinafter refe rred to as "the ISPS Code"), which bas become mandatory under chapter XI-2 of the Intern ational Convention for the Safety of Life at Sea (SOLAS), 1974 (hereinafter referred to as "the Convention"), NOTING ALSO article VIII(b) and regulation XI -2/1.1.12 of the Con vention concerning the procedure for amending part A of the ISPS Code, HAVING CONSIDERED , at its eightieth session, amendments to part A of the - NOTING ALSO article VIII(b) an d regulation XI -2/1.1.12 of the Convention concerning the procedure for amending part A of the ISPS Code, HAVING CONSIDERED, at its eightieth session, amendments to part A of t he ISPS Code proposed and circulated in accordance with article VIII(b)(i) of the Conve ntion, I.

ADOPTS, in accordance with article VIII(b)(iv) of the Convention , amendments to part A of the ISPS Code, the text of which is set out in the Annex to the present resolution; 2 .

DETERMINES , in accordance with article VIII(b)(vi)(2)(bb) of the Convention, that the a mendments shall be deemed to have been accepted on 1 July 2008, unless, prior to that da te, more than one third of the Contract ing Governments to the Convention or Contracting Governments the combined merchant fleets of which constitute not less than 50% of the gr oss tonnage of